



PRESOLICITATION NOTICE

Notice Type: Presolicitation Notice

Title: FDA Third Party Tobacco Retailer Inspection Services (Region 4)

Solicitation Number: 75F40126R00040 (to be posted)

Agency: Department of Health and Human Services (HHS), Food and Drug Administration (FDA)

Contracting Office: Office of Acquisitions and Grant Services (OAGS), 11601 Landsdown St., North Bethesda, MD 20852

NAICS Code: 561611 – Investigation, Guard, and Armored Car Services

Size Standard: \$25 Million

Set-Aside: 100% Small Business Set-Aside

Contract Type: Indefinite Delivery/Indefinite Quantity (IDIQ)

Anticipated Maximum Contract Value: \$33,500,000.00

Contract Minimum: \$10,000.00

Period of Performance: Five (5) Year Ordering Period; Task Orders are expected to have 12-month periods of performance

Description:

FDA, Center for Tobacco Products (CTP), intends to issue a competitive Request for Proposals (RFP) for Third Party Tobacco Retailer Inspection Services in support of FDA's tobacco retail compliance program. This is a noncommercial services acquisition governed by FAR Part 15.

The contract will be structured as an IDIQ with a five (5)-year ordering period. Task orders will be issued with 12-month periods of performance. The anticipated maximum IDIQ value is \$33,500,000.00, with a guaranteed minimum of \$10,000.00. Task orders will be predominantly Firm-Fixed-Price (FFP); however, certain line items may be Cost Reimbursement. Other Direct Costs (ODCs), Non-inspection related travel, and witness testimony support will be Cost Reimbursement.

The Contractor shall provide all personnel, management, coordination, and support necessary to conduct tobacco retail compliance check inspections in accordance with the Federal Food, Drug, and Cosmetic Act (FD&C Act) and applicable FDA protocols. Work includes conducting undercover buy and advertising and labeling inspections at tobacco retail establishments, managing commissioned inspector and underage purchaser programs, handling and transmitting inspection evidence, and providing

program management and reporting support. All inspectors performing work under this contract must be commissioned as officers of the U.S. Department of Health and Human Services (HHS), FDA, under the authority of **Section 702(a)(1)(A) of the FD&C Act (21 U.S.C. § 372(a)(1)(A))** prior to conducting inspections.

Geographic Scope: This presolicitation notice covers Region 4, which includes the following jurisdictions: Alaska, Arizona, California, Colorado, Hawaii, Idaho, Montana, Nevada, New Mexico, Oregon, Utah, Washington, and Wyoming.

There is no guarantee that the Contractor will receive task orders for all jurisdictions or states within the region. The estimated number of inspections will be specified at the task order level for each jurisdiction.

Anticipated Solicitation Timeline:

Milestone	Anticipated Date
Presolicitation Notice Posted	May 01, 2026
Solicitation Issued	May 16, 2026
Proposals Due (Phase I)	June 11, 2026
Proposals Due (Phase II)	July 08, 2026
Anticipated Award Date	September 18. 2026

All dates listed above are approximate and subject to change. Interested offerors should monitor SAM.gov for updates, amendments, and the official solicitation release.

Additional Information: This presolicitation notice is for planning purposes only and does not constitute a commitment by the Government to issue a solicitation or award a contract. The Government is not responsible for any costs incurred in response to this notice. All offerors must be registered in the System for Award Management (SAM.gov) at the time of offer submission and at the time of award.

Questions will not be accepted in response to this presolicitation notice. Interested offerors are encouraged to monitor SAM.gov for the release of the formal solicitation, at which time questions may be submitted in accordance with the instructions provided therein.